

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

**COMPLAINANT'S RENEWED MOTION TO ENFORCE APRIL 1, 2026 ORDER AS TO
REQUESTS FOR PRODUCTION NOS. 4 AND 7 AND FOR SANCTIONS**

Complainant FormuKleen, Inc., by and through its representative, renews its motion to enforce the Presiding Officer's April 1, 2026 Order granting Complainant's Motion to Compel as to Requests for Production Nos. 4 and 7 ("RFP Nos. 4 and 7"), and for sanctions under 46 C.F.R. § 502.150(b) based on Respondent Top Shipping Systems, Corp.'s ("TSS") failure to comply with that Order. This motion concerns the two subject containers: CHSU4047424 and BSIU8431017.

The prior Motion to Enforce was denied without prejudice on May 21, 2026 because the Presiding Officer found the conferral record insufficiently clear. The May 21 Order did not find that Respondent complied. It did not vacate the April 1 Order. It did not narrow RFP Nos. 4 or 7. It did not relieve Respondent of its obligation to produce documents already compelled.

The April 1 Order remains controlling. Respondent was ordered to produce. Respondent does not get to redo its withholding, relitigate scope, or convert compliance with an existing order into a new negotiation over burden, timing, stipulations, searches, or process. Complainant has now made the conferral record unmistakable and Respondent still has not cured.

I. The April 1, 2026 Order Compelled RFP Nos. 4 and 7

RFP No. 4 required production of “all TSS communications with parties other than FormuKleen relating to all FormuKleen shipments managed by TSS, including the subject shipments.” Respondent objected as overly broad. The Presiding Officer rejected that objection, finding Respondent's arguments “off-mark” and ruling that Respondent's third-party communications, routine practices, and operational conduct are relevant to whether Respondent acted as an NVOCC. Order at 11. The Presiding Officer specifically found that “almost any communication between Respondent and any third party is potentially relevant.” *Id.* Respondent was ordered to supplement its response no later than April 15, 2026 (later extended to April 29, 2026). The April 1 Order also compelled RFP No. 7, which sought records of duties, drayage, warehousing, storage, port-related, or other charges paid or advanced by TSS on behalf of FormuKleen.

II. Respondent's Production Is Facially Incomplete

Respondent identified RX1071-RX1114 as its supplemental production responsive to RFP No. 4. In response to Complainant's deficiency correspondence, Respondent stated that it was Respondent's “understanding that there are no further written correspondences to be produced in this regard,” while also stating that it was “in communication with TSS to confirm same.” Respondent did not produce the missing third-party communications and did not identify the Bates ranges where those communications allegedly appear.

The production does not contain the complete TSS communications with the third parties that handled, transported, stored, released, routed, or diverted the subject containers, including:

- CMA CGM;

- DHY Shipping Line Inc.;
- Ningbo Qichen International Logistics Co., Ltd.;
- Topsealand International Co., Limited;
- Dolphin Logistics;
- Seablue Freight Container Inc.;
- South Florida Container Terminal or any other port terminal; and
- Any warehouse, trucking company, or other vendor involved in the handling of either subject container.

These are not hypothetical entities. Respondent's declaration identifies only two third-party email search criteria, while Respondent's supplemental interrogatory responses identify multiple third parties involved in the handling, transportation, storage, release, or diversion of the subject shipments. There is no dispute that these third parties were involved. The complete communications between TSS and these entities are what the Order required Respondent to produce.

Respondent's post-May 21 production does not cure this defect. Respondent's May 28 supplemental production added no new non-FormuKleen third-party communications concerning the two subject containers beyond a limited set of FormuKleen-related Sea Blue communications previously addressed in Complainant's prior Motion to Enforce. The non-FormuKleen third-party communications with CMA CGM, DHY Shipping Line Inc., Ningbo Qichen International Logistics Co., Ltd., Topsealand International Co., Limited, South Florida Container Terminal, and the other carriers, terminals, warehouses, truckers, and vendors identified in Complainant's April 30 and May 6 conferrals remain unproduced.

Respondent now claims it conducted an additional targeted review and located no additional responsive non-FormuKleen third-party communications beyond those already produced. That statement is unsworn, conclusory, and facially implausible given the nature of the shipments, the number of third parties involved, and Respondent's own produced materials showing third-party involvement. If Respondent's position is true, it raises preservation, deletion, retention, and search concerns. If false, it confirms continued withholding. Either way, Respondent has not shown compliance with the April 1 Order.

III. Respondent's Declaration Confirms the Searches Were Inadequate

Respondent's April 28, 2026 Declaration of Ricky Villena, filed pursuant to the April 1 Order, describes all searches performed. The Declaration states that TSS searched its Microsoft Outlook email system for communications to or from the following third-party addresses: (1) zoe@dolphin-usa.com and (2) dispatch@seabluefreight.com. Declaration ¶ 15(f)-(g).

That is it. Two third-party email addresses. Respondent did not search for communications with CMA CGM, DHY Shipping Line, Qichen Logistics, Topsealand International Co., Limited, South Florida Container Terminal, or any terminal, warehouse, trucking company, or other carrier involved in the subject shipments.

Respondent's production also reflects additional transportation, logistics, carrier, and storage entities whose relationship to the subject containers cannot be determined from Respondent's incomplete and redacted production, including Jess Transport, RDJB, Logistics Freight Solutions LLC d/b/a PRIMO, AAA Cooper, Southeastern Freight, Western Express Moving and Storage, and potentially others. Those entities do not appear to have been identified in Respondent's supplemental interrogatory response, and Respondent's declaration does not

identify searches for communications with them. Because Respondent's production is incomplete and redacted, Complainant cannot determine whether each of these entities was involved with CHSU4047424, BSIU8431017, or other FormuKleen shipments. That is precisely the problem. RFP No. 4 required TSS communications with parties other than FormuKleen relating to FormuKleen shipments, including the subject shipments. Respondent should be required to confirm whether it searched for and produced communications with each third-party transportation, logistics, carrier, terminal, warehouse, or vendor entity reflected in its production concerning CHSU4047424 and BSIU8431017.

The deficiency is especially significant because Respondent's Declaration confirms that TSS's electronic communications are maintained in Microsoft Outlook (§ 7) and that shipment documents are maintained in the Magaya Freight Management Platform (§ 6). Respondent therefore identified the systems where responsive communications and shipment-related records would be expected to reside, but its sworn search description does not show searches reasonably calculated to locate the complete communications with the third parties involved in the subject shipments.

The Declaration further confirms that these systems store records for “each and every shipment handled by TSS” (§ 6) and that “[t]here are no additional document locations to be searched, nor searches to be performed” (§ 17). Respondent is now locked into this position under penalty of perjury. The searches described in the Declaration are facially inadequate to capture the complete communications required by the April 1 Order. Searching for two third-party email addresses does not satisfy an order requiring production of all communications with parties other than FormuKleen relating to FormuKleen shipments. The Order's scope is not limited to parties Respondent chose to search for.

Respondent's later conduct directly contradicts its sworn declaration. After the Motion to Enforce was filed and after the May 21 Order, Respondent claimed it conducted an additional targeted review for third-party communications concerning CHSU4047424 and BSIU8431017. That admission is incompatible with the April 29 sworn representation that “there are no additional document locations to be searched, nor searches to be performed.” Declaration ¶ 17. Respondent cannot have it both ways. Either the April 29 declaration was incomplete when made, or the post-May 21 “additional targeted review” was no review at all. Respondent should not be permitted to rely on a sworn declaration that its own later conduct admits was incomplete, and then substitute for sworn compliance an unsworn email statement that TSS “believes” it has produced everything “to the best of TSS's knowledge.”

IV. The “Verbal Discussions” Explanation Does Not Satisfy the Order

The Declaration states that “from time to time” discussions concerning customers “are verbal” and that “TSS does not maintain a written log of such verbal discussions.” Declaration ¶ 16. This does not account for the absence of third-party communications concerning the subject containers.

Containers do not release from port terminals, get routed to third-party facilities, get picked up by drayage vendors, get delivered to warehouses, incur storage charges, or get diverted to Respondent's own warehouse based on undocumented verbal exchanges alone. Those acts require coordination with third parties through written or electronic communications—emails, dispatch instructions, delivery orders, release authorizations, booking confirmations, or portal messages. Some form of written or electronic communication necessarily existed if the containers were handled in the manner Respondent itself describes.

Respondent's generalized statement about verbal discussions is not responsive to an order compelling production of third-party communications.

V. Respondent's Redactions Within the RFP No. 4 and No. 7 Production Further Undermine Its Claim of Compliance

Within the Bates range Respondent identified as its supplemental RFP No. 4 production, RX1071-RX1114, Respondent redacted portions of several pages, including RX1093 and RX1095-RX1096. Respondent's redactions within the RFP No. 4 production further undermine its claim that it complied with the April 1 Order. Respondent produced redacted communications within the RX1071-RX1114 range while claiming that its production is complete, but Respondent's explanation for at least some of those redactions is contradicted by the face of the documents.

In its May 6 discovery-conferral response, Respondent represented that RX1093 and RX1095-RX1096 were redacted because they “identify TSS's other clients and discuss shipments not related to FormuKleen's shipments.” The visible portions of those pages show otherwise. RX1093-RX1095 appear in an email thread between TSS and Sea Blue Freight Container with a subject line referencing “MRSU7214464 / IMP37231-01 / Formukleen.” The visible text concerns a FormuKleen shipment and includes discussion of an appointment secured by Sea Blue. Those redactions therefore appear inside FormuKleen-related third-party communications, not merely unrelated customer communications.

Respondent's May 6 discovery-conferral response confirms the same problem as to payment-related records. Respondent stated that RX1142-RX1143, RX1187-RX1197, RX1206-RX1208, and RX1225-RX1227 were redacted because they supposedly reflect “payments made

by TSS to carriers for shipments not related to FormuKleen's shipments,” and that RX1157-RX1159, RX1178, RX1183, RX1186, RX1205, RX1219, and RX1222 were redacted because they supposedly contain bank information for third parties. But where Respondent redacts the records so heavily that Complainant cannot determine the shipment, customer, carrier, charge, payment, or transaction involved, Complainant cannot test Respondent's unilateral assertion that the redacted material is unrelated, nonresponsive, or properly withheld. This is especially concerning because the April 1 Order compelled RFP No. 7 along with RFP No. 4, and RFP No. 7 concerns duties, drayage, warehousing, storage, port-related, and other charges paid or advanced by TSS on behalf of FormuKleen.

Respondent's selective redactions also undermine its explanation. The production leaves visible FormuKleen-related customer, vendor, shipment, bill of lading, carrier, invoice, and charge information, while redacting portions Respondent characterizes as unrelated, confidential, or nonresponsive. That is not a consistent protective-order application; it is a selective withholding practice that prevents Complainant from testing whether the redacted information is actually unrelated or properly withheld.

Respondent should not be permitted to avoid scrutiny of compelled third-party communications or charge/payment records by redacting the very information necessary to determine whether the records relate to FormuKleen or the subject shipments. Respondent should be required to justify those redactions, submit the redacted material for in camera review, or produce the material unredacted subject to the Protective Order.

Respondent's post-May 21 conduct confirms continued noncompliance and now reflects a separate breach. On May 22, 2026, Respondent offered to produce the disputed redacted

materials designated as “Confidential” or “Attorneys' Eyes Only” under the Protective Order. Complainant accepted that method of production the same day. On May 28, 2026, Respondent served a supplemental production marked “CONFIDENTIAL – PRODUCED SUBJECT TO PROTECTIVE ORDER,” but the email content redactions and the majority of the invoice and payment-related redactions remained in place. The Protective Order designation does not cure a redaction; it is a confidentiality designation applied to information that has been produced. Respondent did not produce the disputed information under the Protective Order. Respondent relabeled still-redacted documents as confidential and continued the withholding. Respondent therefore failed to perform the very redaction cure Respondent itself offered and Complainant accepted.

VI. Conferral Timeline on the Specific Issues Identified by the Presiding Officer

The May 21 Order denied Complainant's prior Motion to Enforce without prejudice because the Presiding Officer was not persuaded that the record sufficiently showed Complainant's efforts to resolve the specific third-party search/communication issue and redaction issue before enforcement. The written conferral record now eliminates that concern.

A. Pre-Motion Conferral (April 30 – May 8, 2026)

April 30, 2026 - Complainant to Respondent's counsel regarding deficient RFP No. 4 supplemental production.

Complainant advised Respondent's counsel that Respondent's supplemental production for RFP No. 4 appeared facially incomplete as to the two subject containers, CHSU4047424 and BSIU8431017. Complainant specifically identified that Respondent had produced some third-party communications for CHSU4047424, including Dolphin/DragonLink and Seablue

communications, but had not produced comparable third-party communications for BSIU8431017. Complainant also identified the absence of communications with CMA CGM, DHY Shipping Line Inc., and Ningbo Qichen International Logistics Co., Ltd., despite those entities being identified in Respondent's supplemental interrogatory response as parties involved in the handling, transportation, storage, release, or diversion of the subject shipments.

Complainant further identified the absence of third-party communications or dispatch records reflecting the instruction, routing, delivery address, delivery order, appointment, or other direction by which either subject container was diverted or delivered to TSS's warehouse rather than to FormuKleen. Complainant asked Respondent to identify the specific Bates ranges if Respondent contended those communications had already been produced, to supplement its RFP No. 4 production within five business days, or to state clearly if no such additional communications existed.

April 30, 2026 - Complainant to Respondent's counsel regarding redactions.

Complainant separately advised Respondent's counsel that Respondent's discovery production contained redactions but Respondent had not provided corresponding unredacted confidential versions. Complainant stated that if Respondent redacted material on confidentiality grounds, the material should have been produced to Complainant in unredacted confidential form under the Protective Order, because producing only redacted versions prevented Complainant from reviewing responsive discovery.

Complainant requested unredacted confidential versions of all redacted documents within three days. Complainant further requested that if Respondent contended any redaction was made for a reason other than confidentiality, Respondent identify the Bates range for each such

redaction and state the specific basis for the redaction.

May 6, 2026 - Respondent's counsel replied regarding redactions.

Respondent's counsel replied under a subject line characterizing the correspondence as “without prejudice, confidential settlement communications,” although the substance concerned discovery production, redactions, RFP No. 4, Respondent's declaration, and whether additional responsive documents existed.¹ Respondent's counsel stated that TSS was not required to serve both redacted and unredacted versions in discovery production. Respondent then identified categories of redactions and stated that RX1093 and RX1095–RX1096 concerned other clients and shipments not related to FormuKleen and “will not be produced.” Respondent also identified RX1142–RX1143, RX1187–RX1197, RX1206–RX1208, and RX1225–RX1227 as payments made by TSS to carriers for shipments supposedly not related to FormuKleen and stated those materials “will not be produced.” Respondent further identified other pages as bank information for third parties.

Respondent did not produce unredacted confidential versions and did not submit unredacted versions for in camera review.

May 6, 2026 - Respondent's counsel replied regarding missing third-party communications.

Respondent's counsel also addressed Complainant's position that additional third-party communications had not been produced. Respondent relied on the April 29 declaration and stated

¹*Respondent repeatedly relabeled discovery-conferral email threads as “without prejudice, confidential settlement communications,” including in its May 6 response addressing redactions and missing third-party communications, and again in its May 8 response transmitting Respondent's supplemental production. The substance of those communications concerned discovery production, redactions, RFP No. 4, Respondent's declaration, and whether additional responsive documents existed. The label appears calculated to shield discovery-conferral correspondence from the Presiding Officer's review by recasting it as settlement communication. Complainant objected to this practice in writing on May 6.*

that, to the extent discussions were verbal, TSS did not maintain written logs, and to the extent written communications existed, they had been produced. Respondent stated that it was counsel's "understanding that there are no further written correspondences to be produced in this regard," while also stating that counsel was "in communication with TSS to confirm same."

Respondent did not identify Bates ranges for the missing communications and did not produce the missing non-FormuKleen third-party communications.

May 6, 2026 - Complainant replied regarding RFP No. 4 and the third-party communication/search deficiency.

Complainant expressly stated that the correspondence concerned Respondent's discovery obligations and deficiencies in Respondent's compelled RFP No. 4 production and was not a settlement communication. Complainant told Respondent not to characterize discovery conferrals as settlement communications. Complainant further stated that Respondent's May 6 discovery-conferral response did not resolve the RFP No. 4 issue.

Complainant explained that there was no realistic possibility that CHSU4047424 and BSIU8431017 were transported, released, routed, picked up, delivered, stored, held, charged, or diverted without written or electronic communications or records involving the third parties Respondent itself identified, including CMA CGM, DHY Shipping Line Inc., Ningbo Qichen International Logistics Co., Ltd., Seablue Freight Container Inc., South Florida Container Terminal, and Dolphin Logistics. Complainant further explained that even under TSS's own description of itself as a customs broker, warehouse, or logistics provider, the claimed services necessarily required written or electronic communications or records with the third parties involved in release, routing, pickup, delivery, storage, charges, or handling of the subject

containers.

Complainant stated that RFP No. 4 calls for “all TSS communications with parties other than FormuKleen” relating to FormuKleen shipments, including the subject shipments, and that pointing to communications that include FormuKleen did not resolve the deficiency.

Complainant identified the issue as the absence of TSS communications with parties other than FormuKleen concerning CHSU4047424 and BSIU8431017, including communications with carriers, NVOCCs, drayage providers, terminals, warehouses, and other transportation parties involved in handling, release, routing, delivery, storage, charges, or diversion.

Complainant requested that Respondent identify the specific Bates ranges if the communications had already been produced, or state clearly if no additional written or electronic communications or records existed. Complainant advised Respondent that if it did not cure the deficiency or identify responsive Bates ranges by 5:00 p.m. Central Time on May 7, Complainant would seek enforcement of the April 1 Order and any further relief the Commission deemed appropriate.

May 7, 2026 - Respondent did not cure by the deadline.

Respondent did not produce the missing non-FormuKleen third-party communications by the May 7 deadline. Respondent did not identify the Bates ranges where those communications appeared. Respondent did not provide unredacted confidential versions of the disputed redacted documents.

May 8, 2026 - Respondent's counsel stated all documents uncovered in TSS's searches had been uploaded.

Respondent's counsel stated that “All responsive documents uncovered in TSS's searches

have been uploaded to the dropbox folder.” That statement did not cure the deficiencies because Respondent still had not produced the missing non-FormuKleen third-party communications, had not identified Bates ranges, had not cured the redactions, and had not shown that the searches described in Respondent's declaration were adequate.

B. Post-May 21 Order Conferral (May 21 – May 28, 2026)

May 21, 2026 - Complainant conferred again directly with Respondent after the May 21 Order.

After the Presiding Officer denied the Motion to Enforce without prejudice, Complainant conferred in writing directly with Respondent, this time directed to Ricky Villena personally (Respondent's prior counsel and successor firm having withdrawn). Complainant explained that the May 21 Order did not find that Respondent complied, did not vacate the April 1 Order, and did not relieve Respondent of its obligation to produce. Complainant defined the scope of “communications” required and identified the missing non-FormuKleen third-party communications concerning the two subject containers, the RFP No. 7 records, the challenged redactions, and the need for RX/Bates identification.

Complainant gave Respondent five business days to cure the deficiencies or provide a clear written position that it would not do so.

May 22, 2026 - Respondent responded by asserting good faith, requesting more time, proposing a call, and offering to produce the disputed redacted materials under the Protective Order.

Respondent stated that it was “genuinely trying to comply,” that TSS would conduct an additional targeted search for the two subject containers that would go beyond the two third-

party email addresses previously identified, that TSS would identify the specific RX/Bates ranges for all responsive materials by May 29, that Respondent needed additional time beyond May 29 for the approximately fifty-five additional shipments, and proposed a conference call to discuss stipulations and narrowing.

On redactions, Respondent offered to produce the disputed materials designated as “Confidential” or “Attorneys' Eyes Only” under the Protective Order.

Respondent's response otherwise attempted to convert compliance with an existing order into negotiation over timing, burden, process, and scope.

May 22, 2026 - Complainant accepted the offered redaction cure and rejected Respondent's attempt to convert compliance into negotiation.

Complainant expressly accepted Respondent's offered method of producing the disputed redacted materials designated as Confidential or Attorneys' Eyes Only under the Protective Order, and stated that there was no remaining basis to withhold those materials.

Complainant responded that Respondent's email did not resolve the issue, that the April 1 Order controls, and that Respondent's obligation was not satisfied by saying it was willing to conduct another search, by proposing a meeting, by invoking the holiday weekend, by referencing staffing issues, or by stating what it “believes” it had already produced. Complainant stated that if Respondent contended it had complied with the April 1 Order as to CHSU4047424 and BSIU8431017, Respondent must identify the exact RX/Bates ranges where the responsive materials appear, and that if Respondent cannot identify the responsive RX/Bates ranges, Respondent had not shown compliance.

Complainant further stated that Respondent remained obligated to produce the RFP No. 7 records and that TSS invoices to FormuKleen were not sufficient; Respondent must produce the underlying records showing the charges, payments, advances, credits, pass-through costs, storage charges, terminal charges, duties, drayage, warehousing charges, port-related charges, or other amounts actually paid, advanced, incurred, credited, or claimed by TSS for the two subject containers.

Complainant set a May 28, 2026 deadline for compliance and advised that if Respondent failed to comply, Complainant would renew motion practice on May 29, 2026.

May 26, 2026 - Respondent again proposed extension, stipulations, and a conference call.

Respondent again proposed a conference call and stipulations to narrow scope, characterized Complainant's deadlines as "unilateral" and "prejudicial," and asserted that the additional targeted search for the two subject containers and identification of RX/Bates ranges would be completed by May 29, 2026. Respondent again requested additional time for the additional shipments beyond the two subject containers.

May 26, 2026 - Complainant again rejected Respondent's attempt to convert compliance into negotiation.

Complainant rejected Respondent's characterization of its conduct as "good faith," stated that Respondent's obligations were not new, unclear, or dependent on further negotiation, that the April 1 Order controls, and that Complainant would not participate in an endless back-and-forth, a call, or further attempts to reframe compliance as a negotiation over obligations already ordered by the Presiding Officer.

Complainant again demanded production, redaction cure, and RX/Bates identification by

May 28, 2026. Complainant gave Respondent a third pre-motion notice tied to the May 28, 2026 deadline and renewed motion practice.

May 28, 2026 - Respondent's "revised" redaction production did not perform the offered cure.

Respondent served a supplemental production. The email content redactions and the majority of the invoice and payment-related redactions remained in place. Respondent applied the marking "CONFIDENTIAL – PRODUCED SUBJECT TO PROTECTIVE ORDER" to documents that remained redacted. That is not the production method Respondent offered on May 22 and Complainant accepted the same day. The Protective Order designation does not cure a redaction; it is a confidentiality designation applied to information that has been produced. Respondent therefore did not produce the disputed information under the Protective Order and did not perform the redaction cure Respondent itself proposed.

May 28, 2026 - Respondent's claim of no additional non-FormuKleen third-party communications.

Respondent stated that it had conducted an additional targeted review for third-party communications concerning CHSU4047424 and BSIU8431017, including communications with carriers, terminals, warehouses, truckers, vendors, and other non-FormuKleen entities where FormuKleen was not a participant. Respondent claimed it did not locate additional responsive communications beyond those already produced and stated, "to the best of TSS's knowledge," that it believed it had produced all responsive materials within its possession, custody, or control concerning the two subject containers.

Respondent's May 28 supplemental production contained no new non-FormuKleen third-

party communications concerning the two subject containers beyond those previously produced. The non-FormuKleen third-party communications with the carriers, terminals, warehouses, truckers, vendors, and other entities identified in Complainant's April 30 and May 6 conferrals remain unproduced.

This statement is unsworn, conclusory, and facially implausible given the nature of the shipments, the number of third parties involved, and Respondent's own produced materials showing third-party involvement. It is also directly inconsistent with the April 29 sworn declaration, which represented that "there are no additional document locations to be searched, nor searches to be performed." Declaration ¶ 17. Respondent's post-May 21 admission that an additional targeted review was performed confirms that the April 29 sworn declaration was incomplete.

C. Summary

The written conferral record now shows the exact issues the Presiding Officer identified. Complainant specifically raised the missing non-FormuKleen third-party communications, the inadequacy of pointing to FormuKleen-included communications, the need for Bates/RX identification, and the redaction issue before seeking enforcement. Complainant gave Respondent an opportunity to cure. Respondent did not cure. Complainant conferred again after the May 21 Order. Respondent offered to produce the disputed redacted materials under the Protective Order; Complainant accepted that method; Respondent did not perform. Respondent still did not produce the missing third-party communications. Respondent still did not identify the responsive RX/Bates ranges. Respondent's post-May 21 representation that no additional responsive communications exist is unsworn and contradicts its own sworn declaration.

Respondent has had every opportunity to comply. The record is now complete.

VII. The Missing Communications Go to the Core of This Case

The Presiding Officer has already found that whether Respondent acted as an NVOCC is a fact-intensive inquiry and that Respondent's third-party communications are “potentially relevant.” Order at 11. The missing communications go directly to who controlled the subject containers, who gave instructions to drayage vendors and terminals, how the containers were released and routed, what charges were incurred and paid, and how container BSIU8431017 came to be diverted to Respondent's own warehouse without Complainant's authorization. These are the central facts in dispute.

The prejudice is compounded by the procedural history. On July 16, 2025, Complainant filed a Motion for Summary Judgment seeking a finding that Respondent acted as an NVOCC in relation to the subject shipments. The Presiding Officer denied that motion without prejudice, finding that additional discovery was needed to resolve questions of fact as to whether Respondent was acting as an NVOCC. MSJ Order at 7-8. The Presiding Officer specifically identified the need for additional information about Respondent's conduct, including whether Respondent purchased transportation services, paid port-to-port charges, entered into agreements with underlying shippers, and how Respondent held itself out to the general public. MSJ Order at 7.

The documents withheld under RFP No. 4 are precisely the documents that would supply the facts the Presiding Officer identified as missing. Respondent's third-party communications would show how Respondent interacted with carriers, terminals, drayage vendors, and other logistics participants in connection with the subject shipments—the very conduct the Presiding

Officer said he needed to evaluate. Respondent cannot withhold the evidence that would resolve the factual question the Presiding Officer identified and then benefit from the resulting gap in the record. Under 46 C.F.R. § 502.150(b)(1), the appropriate sanction is to deem established the facts Complainant's Motion for Summary Judgment sought to prove.

Complainant should not be required to repeatedly litigate a request the Presiding Officer already compelled.

VIII. Sanctions and Relief Under 46 C.F.R. § 502.150(b)

Under 46 C.F.R. § 502.150(b), where a party fails to obey an order requiring it to respond to discovery requests, the Presiding Officer may:

- “(1) Direct that the matters included in the order or any other designated facts must be taken to be established for the purposes of the action as the party making the motion claims;
- (2) Prohibit the disobedient party from supporting or opposing designated claims or defenses, or from introducing designated matters in evidence; or
- (3) Strike pleadings in whole or in part; staying further proceedings until the order is obeyed; or dismissing the action or proceeding or any party thereto, or rendering a decision by default against the disobedient party.”

Respondent has failed to comply with the April 1 Order. Respondent received an extension of time to comply. Respondent then served a production that remains facially incomplete as to the subject containers. Respondent's own sworn declaration confirms that the searches performed were inadequate to capture the complete communications the Order required.

Respondent now represents that its production is complete.

The appropriate remedy is enforcement with consequences, not another open-ended opportunity to delay. Respondent should not receive yet another consequence-free opportunity to comply with an order it has already failed to satisfy.

IX. Request for Relief

Complainant respectfully requests that the Presiding Officer:

1. Order Respondent to immediately produce all TSS communications with parties other than FormuKleen concerning CHSU4047424 and BSIU8431017, including communications with CMA CGM, DHY Shipping Line Inc., Ningbo Qichen International Logistics Co., Ltd., Topsealand International Co., Limited, Dolphin Logistics, Seablue Freight Container Inc., South Florida Container Terminal, and any other third party involved in the handling, transportation, storage, release, routing, delivery, charges, or diversion of either subject container;
2. Order Respondent to identify by Bates range any documents Respondent contends already satisfy RFP No. 4 as to CHSU4047424 and BSIU8431017;
3. Order Respondent to produce all underlying RFP No. 7 records concerning duties, drayage, warehousing, storage, port-related, or other charges paid or advanced by TSS on behalf of FormuKleen for CHSU4047424 and BSIU8431017;
4. Order Respondent to produce a privilege log for any responsive communications withheld or redacted on privilege grounds;
5. Preclude Respondent from relying at hearing on any unproduced third-party

communications concerning the subject containers;

6. Pursuant to 46 C.F.R. § 502.150(b)(1), deem established that Respondent acted as an NVOCC in relation to the subject shipments, or in the alternative reinstate and grant Complainant's Motion for Summary Judgment on that basis;
7. Draw an adverse inference, or in the alternative permit Complainant to argue, that the unproduced third-party communications and RFP No. 7 charge/payment records would have been unfavorable to Respondent; or, at minimum, impose such relief if Respondent fails to comply with the enforcement order;
8. Order Respondent to submit all redacted communications within RX1071-RX1114, the heavily redacted payment-related records identified in Respondent's May 6 discovery-conferral response, and Respondent's post-May 21 "revised" redaction production for in camera review; or, alternatively, order Respondent to produce unredacted versions subject to the Protective Order unless Respondent establishes a valid privilege or specific nonresponsive basis for each redaction;
9. Order Respondent to file a renewed sworn declaration from a person with first-hand knowledge identifying all searches performed, all custodians and accounts searched, all systems searched, all search terms and date ranges used, whether deleted/archive/attachment/sent/received/forwarded materials were searched, whether non-email business communications were searched, and whether any responsive communications were deleted, lost, archived, inaccessible, withheld, or not preserved;
10. Award Complainant its reasonable costs and any other relief available under the Commission's rules for having to seek enforcement of an order already entered and

impose any sanctions the Presiding Officer deems appropriate;

11. Grant any further relief the Presiding Officer deems appropriate.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

FourOneOne LLC

2501 Chatham Rd, Suite 8082

Springfield, IL 62704

Email: sara@fouroneone.io

Phone: 630-286-9846

Signature:  _____

Date: 05/31/2026

CERTIFICATE OF SERVICE

I certify that on May 31, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

Ricky Villena

Top Shipping Systems, Corp.

12480 NW 25th Street, Ste. 100

Miami, Florida 33182

ricky.villena@tsscorp.us

Sara Dandan

